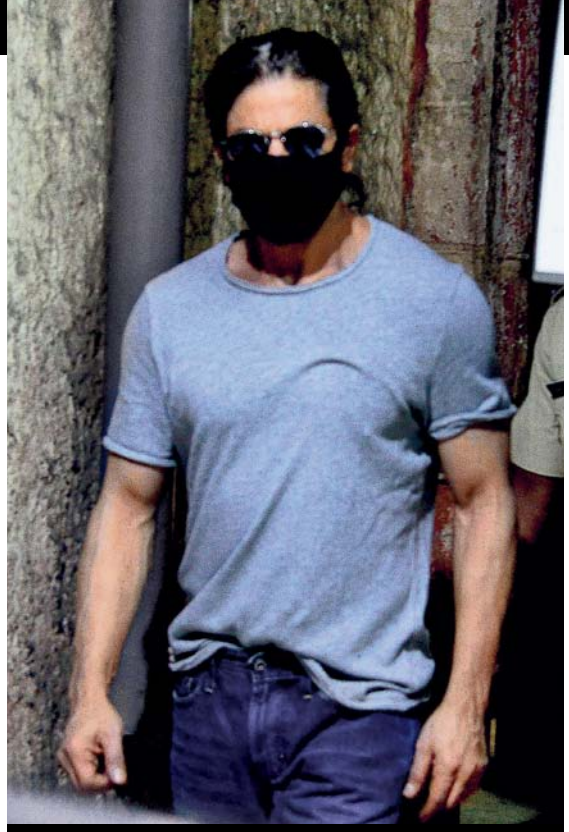


SUJIT JAISWAL/AFP

GAOL VISIT Shah Rukh Khan at the Arthur Road jail, Mumbai, after meeting son Aryan

THE INSIDE STORY

If Aryan Khan has become one of the driving forces of the reforms process, it is because his case represents the trials and tribulations that thousands of youngsters undergo when booked under the NDPS Act for consuming illicit drugs. When Khan came to meet the SIT team, he had already spent 26 days in jail, with two lower courts having rejected his pleas for bail and only the Bombay High Court providing him relief. Conscious of how the media hounds such celebrities, Sanjay Singh, NCB's deputy director general (operations), who headed the SIT, asked Khan to come incognito to the guest house of the heavily guarded commando unit of the Central Reserve Police Force (CRPF) in Navi Mumbai. Singh, a seasoned police officer, who had served with the Central Bureau of Investigation (CBI) prior to joining the NCB, confessed that he had not expected the kind of soul-searching queries that Khan would make.

Singh first made Khan comfortable by telling him that he had come with "an open mind" and that he could speak to him freely. Speaking in Hindi, Khan then confronted Singh with a series of uncomfortable questions. "Sir," he asked him, "you have painted me as an international drugs trafficker, that I

him on the basis that Arbaaz, who was to share his room on the cruise, was allegedly found carrying 6 gms of charas in his socks. In his statement, Arbaaz claimed that the charas was for his personal use, and that Aryan had advised him against carrying drugs to the cruise saying, "NCB guys are active." That Aryan did not possess drugs when he was apprehended is one of the major reasons why the charges against him had to be dropped.

- Wankhede tried to link all the drugs recovered during the search so that the total quantity would be sufficient to be deemed 'commercial', attracting severe punishment under the NDPS and suggesting the existence of an organised gang that included Aryan. But the SIT found no links among the various groups caught in possession of drugs on that day.

CONSUMPTION OF DRUGS

- Wankhede's team tried to use WhatsApp chats recovered from Aryan's mobile phone to show that he was a regular consumer of drugs. But most of the chats allegedly suggesting that he was purchasing cannabis date back to when he was in California, US, where it is legal to do so.
- There were some conversations in India, but the NCB's Mumbai unit couldn't come up with any corroborative evidence. Unless backed by such evidence, WhatsApp chats are not admissible in court.
- Wankhede had not followed the laid down procedure while examining Aryan's mobile phone records, further weakening the case.
- The NCB's Mumbai team failed to get Aryan's medical examination done on the day he was apprehended to check for consumption of drugs. The SIT ruled that the evidence mounted was not beyond reasonable doubt.



"There was no evidence available to file a complaint against Aryan Khan. The case was judicially weak"

SANJAY SINGH
Deputy Director General (Operations), NCB

PURCHASE AND SALE OF DRUGS

- The NCB's Mumbai unit latched on to Aryan's WhatsApp chat with his acquaintance Achit Kumar, who owed him Rs 80,000. In the conversation, Aryan asks for part of the debt to be returned in kind, which was presumed to mean charas. But Achit had so far repaid him only in cash and there is no proof that he ever supplied drugs to Aryan.
- The other WhatsApp chats allegedly referring to drugs in India, have no legal value unless backed by corroborative evidence, which the NCB couldn't get.
- The SIT also ruled out any possibility of Aryan having links with organised drugs gangs and international cartels. ■